

2022 P L C (C.S.) 740

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD ARSHAD

Versus

PROJECT DIRECTOR PSIC and others

Writ Petition No.35942 of 2019, heard on 23rd June, 2021.

(a) Civil service---

---Pensionary benefits---Terms of service---Estoppel---Scope---Petitioner's case was that he was entitled to the grant of pensionary benefits as he had rendered thirty three years long standing service as confirmed employee, whereas stance of authorities was that the petitioner was not eligible for grant of pensionary benefits as his appointment was made against working capital---Validity---Petitioner after accepting the terms and conditions of his confirmed employment had submitted his joining report and was well aware about the fact that he was being appointed against a working capital and his salary and other benefits including pensionary benefits would be drawn out of the working capital---Petitioner's acknowledgement of his confirmation letter explicitly revealed that the same was accepted without any protest or objection, meaning thereby that the petitioner had accepted his confirmation in service with his free will and consent and had also received emoluments there-against, as such nothing was left to be claimed by him qua his pensionary benefits---Petitioner's case was hit by principle of estoppel---No element of mala fide on the part of department was shown by the petitioner towards refusing of pensionary benefits---Constitutional petition was dismissed.

(b) Qanun-e-Shahadat (10 of 1984)---

---Art.114---Estoppel---Scope---Doctrine of estoppel means a disability where a party is precluded from alleging or proving in legal proceedings that a fact is otherwise than it has been made to appear by the matter giving rise to such disability.

Secretary Economic Affairs Division, Islamabad and others v. Anwar ul Haq Ahmad and others 2013 SCMR 1687 rel.

Sh. Muhammad Umar Siddiq for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General for Respondents.

Date of hearing: 23rd June, 2021.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") with the prayer that quasi-judicial order 22.05.2019 passed by the Respondent No.3 pursuant to directions issued by this Court in W.P.No.6079 of 2019 dated 01.06.2019 be set aside and the Respondents be directed to grant him pensionary benefits w.e.f. 04.06.2018.

2. Facts of the case are that the Petitioner was appointed by the Respondents as Helper in year 1985 on daily work basis and later on he was appointed on contract basis vide order dated 30.01.1993. After completion of one-year probationary period, his services were confirmed and he was regularized w.e.f. 01.02.1994. Subsequently, he was promoted as Semi-Skilled Worker in BS-16 on regular basis w.e.f. 30.07.2017. After rendering thirty-three years of service, he submitted an application dated 28.04.2018 for retirement due to his ill health and on that application, process was started however, no decision was communicated to him. The Petitioner submitted another application to the Respondent No.1 on 19.11.2018 for the same purpose and non-decision of aforesaid application prompted him to approach this Court through W.P.No.6079 of 2019 and sought directions for decision of his application. The Respondents in terms of order passed by this Court dated 01.02.2019 passed the impugned order by rejecting his application.

3. Report and parawise comments were filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. Learned counsel for the Petitioner inter alia contended that the Respondents are not granting the Petitioner pensionary benefits which were accrued in his favour after rendering thirty-three years of service; that vide the impugned order, his pensionary benefits have been refused merely on the ground that he was not eligible for such benefits as his appointment was made against working capital and was not approved budgeted post; that non-payment of pensionary benefits amounts to violation of fundamental rights as such the impugned order is liable to be set aside.

5. Learned Law Officer vehemently contested the arguments advanced by the learned counsel for the Petitioner and contended that the services of the Petitioner were engaged against a temporary and non-existing post to be paid out of working capital and such appointment is not eligible for pensionary benefits therefore, Petitioner was rightly refused such benefits.

6. I have heard learned counsel for the parties and gone through the available record.

7. The whole case of the Petitioner is that he is entitled to the grant of pensionary benefits as he rendered thirty-three years long standing service as confirmed employee while the stance of the Respondents is that the Petitioner is not eligible for grant of pensionary benefits as his appointment was made against working capital. The Petitioner has disputed the order dated 22.05.2019, operative part thereof is reproduced hereunder:

"During personal hearing the Manager (Service Centres) asked Petitioner to provide the supportive documents/evidence in support of his argument. In response, the Petitioner furnished his application along with appointment order which was already part of writ petition and he was unable to provide any further documents in support of his arguments.

After analyzing the provided record, going through the facts of the case and stance of the Departmental Representatives, it is evident that Mr. Muhammad Arshad was appointed against Working Capital on 30.01.1993 and any such appointment is not eligible for pensionary benefits etc."

8. The record shows that the Petitioner was appointed as Helper on contract basis vide order dated 30.01.1993 on the following terms and conditions which are imperative to reproduce hereunder:

- "1. Your appointment will be governed by the procedure already approved by the M.O. for appointment against Working Capital and likely to be terminated at any time without assigning any reason or without any notice.
2. Your appointment will be in B.P.S.-5 i.e. 1035-49-1770 including all kind of benefits/allowances allowed under any Statutory provisions.
3. You will draw salary and other benefits out of Working Capital.
4. You will only be entitled to maximum of 2 days Casual Leave per month for the period served in PSIC.
5. Your appointment will be subject to Medical Fitness Certificate from Medical Superintendent from District Headquarters Hospital or PSIC, Medical Officer".

Underline is mine

9. From the above, it is quite clear that appointment of the Petitioner was made subject to the already approved procedure of the department and his salary and other benefits including pensionary benefits were to be drawn out of working capital. It is not disputed that the services of the Petitioner were confirmed by the Respondents vide order dated 02.02.1994 but this confirmation was subject to terms and conditions already set out at the time of his first appointment. The confirmation letter of appointment reads as follows:

"Having successfully completed one year's probationary period the under mentioned employees have been confirmed in their present grade and scale with effect from 1.2.1994:-

1. Mr. Muhammad Arshad, Helper
2. Mr. Khalid Mehmood, Helper
3. Mr. Sajid Ali Shah, Helper
4. Mr. Muhammad Saleem, Helper

The other terms and conditions of their services will remain unchanged".

Underline is mine

10. From perusal of above said confirmation letter, the services of the Petitioner were confirmed by the Respondents on 02.02.1994 and it was specifically mentioned that other terms and conditions of service will remain unchanged which clearly shows that the Petitioner's service will be governed in terms of his earlier appointment as already approved by the Respondents. The Petitioner after accepting the terms and conditions of his confirmed employment submitted his joining report and was well aware about the fact that he was being appointed against a working capital and his salary and other benefits including pensionary benefits would be drawn out of the working capital. It is noticeable here that the Petitioner's acknowledgement of his confirmation letter i.e. 02.02.1994 explicitly reveal that the same was accepted without any protest or objection. Meaning thereby that the Petitioner has accepted his confirmation in service with his free will and consent and has also received emoluments there-against, as such nothing is left to be claimed by him qua his pensionary benefits. The Petitioner's contention at this stage that he is entitled for the grant of pensionary benefits does not have any weight as the same is hit by the principles of estoppel. Because the Petitioner on the one hand has enjoyed his service as confirmed employee along with allied benefits without any protest and objection and on the other hand seeks pensionary benefits which were not available under the contract, as explained above. In this regard the Hon'ble Supreme Court of Pakistan has held in the case titled "Secretary Economic Affairs Division, Islamabad and others v. Anwar ul Haq Ahmad and others" (2013 SCMR 1687) that doctrine of estoppel meant a disability whereby a party was precluded from alleging or proving in legal proceedings that a fact was otherwise than it had been made to appear by the matter giving rise to such disability. Even otherwise, the Petitioner has never approached the Respondents at the relevant time for clarification of this very fact and even not placed on record anything to substantiate his claim.

11. It is to be noted that the Respondents are bound to follow their statute/rules/regulations and the Courts cannot rescue any person to issue direction for the relief to which he is not eligible. Furthermore, no element of mala fide on the part of the Respondents has been shown by the Petitioner towards refusing of pensionary benefits.

12. In view of above discussion, I am not inclined to interfere with the impugned order which otherwise has been passed aptly. Resultantly the instant petition stands dismissed.

SA/M-169/L

Petition dismissed.